

23STCV29996 23STCV29996

County: los-angeles

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Department: 508

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Case Number: 23STCV29996 Hearing Date: September 1, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

MILLION SEIFU, et al.,

Plaintiffs,

vs.

ROBERT Q. BERGSTROM as

Successor Trustee of the AUGUSTUS CRAIG 2018 REVOCABLE TRUSTCREATED FEBRUARY
20, 2018, et al.,

Defendants.

Case No.:

23STCV29996

Hearing Date:

September 1, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFFS'

MOTION TO CONTINUE TRIAL

Background

On

December 7, 2023, a number of plaintiffs filed this action against a number of defendants, alleging causes of action for (1) breach of contract/contract of quiet enjoyment & warranty of habitability, (2) tortious breach of the implied warranty of habitability, (3) negligence, (4) violation of Civil Code section 1942.4, (5) violation of unfair business practices, (6) tenant harassment, (7) violations of the Fair Employment and Housing Act, (8) private nuisance, and (9) retaliation.

Jury

trial is currently set for October 14, 2026.

Plaintiffs Million Seifu; Tereche Mengistue Gelaye; Seifu

Engida Gebrehiwot; Betsinat Seifu (Minor) through Guardian Ad Litem Million

Seifu; Nishan Seifu (Minor) through Guardian Ad Litem Million

Seifu; Mekdes Teshome Deresu; Lulia Tesfaldet Haile

(Minor) through Guardian Ad Litem Tesfaldet Haile Fiseha;

Ayzia Tesfaldet Haile (Minor) through Guardian Ad

Litem Tesfaldet Haile Fiseha; Simon Tesfaldet Haile (Minor)

through Guardian Ad Litem Tesfaldet Haile

Fiseha; Tesfaldet Haile Fiseha; Semhar Kiflezghi Eyasu; and

Hirut Mengiste (collectively, "Plaintiffs") now move for an order to continue the jury trial date currently scheduled for October 14, 2026 to April 12, 2027, or the earliest date thereafter convenient to the

Court; to continue and reset all dates and deadlines to align with the new

trial date. Defendants Jervis Property Service, Inc., Donald Dale

Jervis, Stanly Holdings, LLC, and James Douglas Root d/b/a Double R.

Development oppose (collectively, "Defendants"). Plaintiffs replied.

Request

for Judicial Notice

Plaintiffs

seek judicial notice of the Court's "own records, including the prior order staying rent while habitability conditions remained uncorrected." (Notice of Mot., 2:22-24.) Pursuant to Evidence Code, section 453,

"[t]he trial court shall take judicial notice of any matter specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request, through the pleadings or otherwise, to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." However, Plaintiffs do not attach a copy of the order, nor do Plaintiffs state when the order occurred, provide the explicit name of the order, or apprise the Court of any other details to allow it to find and obtain the specific order for which Plaintiffs request judicial notice. Accordingly, the Court denies Plaintiffs' request for judicial notice.

Legal Standard

"Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits.   The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. " (  Cal. Rules of Court, rule 3.1332(c).) "Circumstances that may indicate good cause include:

(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2) The unavailability of a party because of death, illness, or other excusable circumstances;

(3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5) The addition of a new party if:

(A) The new party has not had a reasonable opportunity

to conduct discovery and prepare for trial; or

(B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial." (Ibid.)

"In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

(1) The proximity of the trial date;

(2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3) The length of the continuance requested;

(4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5) The prejudice that parties or witnesses will suffer as a result of the continuance;

(6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;

(7) The court's calendar and the impact of granting a continuance on other pending trials;

(8) Whether trial counsel is engaged in another trial;

(9) Whether all parties have stipulated to a continuance;

(10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11) Any other fact or circumstance relevant to the fair determination of the motion or application.”

(¿ Cal. Rules of Court, rule 3.1332(d).)

Discussion

Plaintiffs assert that, given the nature of this action, an 180-day continuance is warranted. Specifically, “[t]his is a consolidated civil habitability action involving 14 Plaintiffs in four separate apartment units or households; seven Defendants, including the owner, management, contractors, and other entities or persons; and four related unlawful detainer proceedings. The claims require proof of conditions in each unit, notice and responsibility as to each Defendant, individualized causation and damages, governmental inspection and code-enforcement evidence, documentary repair and tenancy records, and substantial lay and expert testimony.” (Mot., 4:4-12.)

Plaintiffs assert that they “retained current counsel on or about June 10, 2026, after an irreconcilable breakdown in the attorney-client relationship with prior counsel. Current counsel received an incomplete litigation file only on July 17, 2026; promptly identified material discovery deficiencies; and was advised that missing materials would be provided on or about August 2, 2026. Current counsel is receiving demands for responses to discovery propounded to Plaintiffs as early as February 2026, before current counsel's retention, and has received defense discovery responses as late as June 2026. Those materials confirm that the discovery record remains materially incomplete and must be reconstructed before trial.” (Notice of Mot., 3:1-9.)

First, Plaintiffs assert

that good cause exists because they “retained current counsel on or around June 10, 2026, following an irreconcilable breakdown in their relationship with prior counsel. Plaintiffs need not litigate the particulars of the attorney-client relationship in this motion, and they do not waive applicable privileges. The relevant showing is that the substitution was required in the interests of justice and left current counsel with a compressed period to prepare a complex consolidated matter.” (Mot., 6:20-26.) However, “[c]urrent counsel received the litigation file on or around July 17, 2026. Initial review showed that critical portions of discovery were incomplete. Counsel promptly contacted prior counsel concerning those deficiencies, and prior counsel represented that missing materials would be sent on or about August 3, 2026. Counsel then began reviewing and organizing the materials received and assessing the work required to prepare the matter for trial.” (Mot., 6:27-7:5.) Moreover, “[t]he discovery record itself confirms the problem. Current counsel is receiving demands for responses to discovery propounded to Plaintiffs as early as February 2026, months before current counsel’s retention. Current counsel has also received defense discovery responses as late as the end of June 2026. These materials require counsel to reconstruct what was served, what was answered, what was produced, what remains outstanding, and what information is necessary to prepare the claims and defenses for trial. The record does not show an elective or tactical substitution made to delay trial. It shows a necessary change of counsel, an incomplete file, prompt efforts to obtain the missing record, and insufficient time to master the case, investigate the claims and defenses, evaluate expert needs, and prepare for trial.” (Mot., 7:6-17.)

Next, Plaintiffs contend that, based on the current trial schedule, new counsel cannot complete the requisite tasks to be adequately prepared for trial. Specifically, Plaintiffs’ counsel explains that “[b]ased on the materials reviewed to date and the incomplete discovery record, substantial preparation remains. Among other tasks, I must:

- a. Complete a unit-by-unit, Plaintiff-by-Plaintiff factual and damages chronology;
- b. Identify and analyze pertinent conditions, notice evidence, repairs, responsible actors, and defenses for each unit and Defendant;
- c. Review and organize

discovery, documentary materials, governmental records, repair and maintenance materials, photographs, communications, tenancy records, and materials from the related unlawful detainer proceedings;

d. Identify, interview, and prepare Plaintiffs and material lay witnesses, including neighbors, other percipient witnesses, responsible property personnel, contractors, and governmental witnesses;

e. Assess whether targeted depositions or other discovery will be needed after a proper motion and meet-and-confer process;

f. Obtain and authenticate relevant City inspection reports, notices, citations, permits, repair records, and related communications;

g. Evaluate and, if warranted by the evidence, retain and prepare expert witnesses in fields including building code or habitability, construction or repairs, environmental conditions, medical causation, and damages or loss of use. The ultimate number and disciplines will depend on the evidence, but I presently anticipate that several experts—potentially five to seven—may be necessary;

h. Prepare trial exhibits, witness lists, jury materials, motions in limine, trial briefs, foundation evidence, demonstratives, and direct- and cross-examination outlines; and

i. Prepare Plaintiffs and other witnesses for testimony.”

(Gebriel Decl., ¶ 14.)

Counsel states that “[t]hese tasks cannot reasonably be completed before the October 14, 2026 trial date. The remaining time is insufficient to reconstruct and review the incomplete file, conduct necessary investigation, evaluate experts, prepare 14 Plaintiffs, and organize proof for four distinct units and seven Defendants.” (Gebriel Decl., ¶ 15.)

Plaintiffs’ counsel further attests, “I have acted diligently since being retained. I obtained the file

when it was provided, began reviewing it, identified missing discovery materials, promptly contacted prior counsel about those deficiencies, and assessed the work needed to prepare the matter for trial. To my knowledge, after reviewing the file received to date, no Defendant or Defendant-side agent has been deposed.” (Gebriel Decl., ¶ 16.) The filing date of this motion, August 3, 2026, supports Plaintiffs’ counsel’s declaration as to diligence, since former counsel was meant to send Plaintiffs the “missing materials ... on or about August 2, 2026.” (Gebriel Decl., ¶ 5.) Moreover, Plaintiffs’ counsel believes that, in his “professional judgment, a finite continuance will improve—not hinder—the efficient use of trial time. Proceeding without that relief creates a substantial risk of incomplete proof, avoidable evidentiary disputes, witness-preparation problems, and midtrial disruption.” (Gebriel Decl., ¶ 19.)

Additionally, Plaintiffs

contend that the Court previously ordered “that Plaintiffs’ rent payments be stayed while habitability conditions remained uncorrected,” and “[t]he owner’s concern about approximately three years of unpaid rent warrants a direct response.” (Mot., 8:18-20.) Plaintiffs explain that “the present nonpayment did not arise from a unilateral refusal by Plaintiffs to pay rent. It arose under a Court-directed stay tied to unresolved habitability conditions. The owner had the ability to seek clarification, modification, dissolution, or enforcement of a different rent-payment requirement if it believed the conditions supporting the stay had changed. Plaintiffs understand that the owner did not seek such relief for approximately two and one-half years but now raises the claimed rent balance in opposition to a continuance after substitution of counsel. That timing does not make the claimed balance irrelevant; it confirms why the rent question should be resolved on a full record rather than used to deny Plaintiffs adequate trial preparation.” (Mot., 8:27-9:5.) Plaintiffs contend that “[t]he owner is not without remedy. The Court retains authority to determine, on an adequate evidentiary record, whether any rent is due and in what amount.” (Mot., 9:23-24.)

Regarding the unpaid

rent, Defendants assert that they are “unsure of why Plaintiffs believe that there was a stay on payment of rent ordered by this Court, especially one premised on the notion that the units are uninhabitable and no rent is due until the uninhabitable conditions are corrected... While Plaintiff seeks judicial notice of this Order, there is no such Order from which they can seek judicial notice.” (Opp., 4:17-24.) Defendants contend that they “actually offered

a solution to Plaintiffs to address its concerns along with Plaintiffs' purported need for a continuance – stipulate to lift the stay on the unlawful detainer actions and allow them to proceed and/or agree to pay rent. Plaintiffs wholly ignored this request. Plaintiffs' assertion that there are habitability issues which need to be addressed before the unlawful detainers proceed are without merit. The unlawful detainer actions at issue were not a result of non-payment of rent. They arise from Defendant's exercise of his right to regain possession of the units because of either the intent to demolish and/or substantially renovate the units. Thus, the habitability issues raised (and even the alleged retaliatory conduct) are of no consequence to the unlawful detainer action." (Opp., 5:1-10.) Defendants further contend that "[t]he true prejudice here lies in having to forego any rental payments while at the same time being unable to perform substantial renovations to the property as contemplated and permitted by law. Of the four units involved in [sic] matter, three of the units (units 1, 3 and 4) continue to be occupied by the Plaintiffs." (Opp., 5:23-26.)

In opposition, Defendants also assert that "Plaintiffs argue being forced to proceed to trial in October is not a matter of convenience but a result of Plaintiffs' inability to present their case. This result is of their own making. In fact, Plaintiffs' past conduct (and continued conduct) has resulted in a prejudice to all parties. Plaintiffs have repeatedly refused to appear and have themselves failed to participate in the discovery process. Trial in this matter has been continued on a number of occasions the last of which was in April of this year. Defendants have repeatedly attempted to take plaintiffs depositions since that time but have been met by roadblocks. Even now, this Court ordered the parties to meet and confer and directed Plaintiffs' counsel to provide dates – as of the filing of this opposition, Plaintiffs' counsel has not complied with this request." (Opp., 3:27-4:8.)

Defendants "respectfully request[] this Court deny Plaintiffs request for a trial continuance. Alternatively, if the Court is inclined to continue trial, Defendant respectfully request the Court lift the stay on the unlawful detainer matters and allow them to proceed to trial." (Opp., 6:3-6.)

Regarding Plaintiffs' failure to appear for deposition, this appears to have occurred while former counsel oversaw the case or during the transitional period between Plaintiffs'

former and current counsel. Plaintiffs assert that they “dispute Defendants’ characterization of the discovery history, but Plaintiffs do not seek to avoid discovery. The appropriate response is an enforceable schedule for completion of discovery—not a trial before necessary preparation can be completed.” (Reply, 5:8-12.) In the reply papers, Plaintiffs propose a discovery schedule. The Court finds that the proposed schedule demonstrates a willingness to engage in the discovery process and that Plaintiffs should meet and confer with Defendants to ensure that Defendants agree with and find the proposed schedule reasonable.

As for the withheld rent payments and the unlawful-detainer proceedings, Plaintiffs assert that Defendants’ “issues fall outside the limited relief Plaintiffs seek here and should not be resolved through a ruling on a civil trial-continuance motion. Plaintiffs do not ask the Court in this motion to adjudicate the scope of any stay, rent obligations, habitability, possession, retaliation, offsets, or damages. Plaintiffs expressly preserve all positions, claims, defenses, offsets, and statutory remedies concerning those issues. A request to lift stays in separate proceedings should be made, if at all, by a procedurally proper request directed to the governing orders and case files.” (Reply, 6:11-21.)

As Plaintiffs’ reply asserts, Defendants’ request to lift the stay regarding unpaid rent is not properly before the Court.

Although Defendants’ opposition demonstrates some prejudice, Plaintiffs’ reasons for seeking a trial continuance weigh in their favor. Plaintiffs’ counsel demonstrates the essentially impossible task of obtaining all the necessary discovery before the current trial date. Moreover, from Defendants’ opposition, it appears that Defendants have also been unable to obtain necessary discovery. Without a trial continuance, trial would proceed with an undeveloped record. Accordingly, a continuance is warranted in the interests of justice, due to Plaintiffs’ new counsel’s inability to adequately prepare before the currently set trial date. (See Cal. Rules of Court, rule 3.1332(c)(4)-(6).)

Conclusion

Based on the foregoing, Plaintiffs’ motion to continue trial is GRANTED.

The Court continues the final status conference to _____, at 10:00 a.m., in Dept. 508 and jury trial to _____, at 10:00 a.m. in Dept. 508. The date for lodging the trial readiness and exhibit binders is continued to _____ by 4:00 p.m. in Dept. 508.

All deadlines tied to the trial date are continued based on the new trial date.

Plaintiffs are ordered to give notice of this Order.

DATED: September 1, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court